

Brijendra Singh vs State Of Himachal Pradesh on 25 November, 2024

Author: Virender Singh

Bench: Virender Singh

(2024:HHC:1242

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA

CrMP(M) No. 2603 of 2024
Decided on : 25.11.2024

Brijendra Singh

...Applicant

Versus

State of Himachal Pradesh

...Respondents

Coram

The Hon'ble Mr. Justice Virender Singh, Judge.

Whether approved for reporting?1

For the applicant

: Mr. Dheeraj K. Vashisht, Advocate.

For the respondent : Mr. Mohinder Zharaick, Mr. H.S.

Rawat and Mr. Tejasvi Sharma,
Additional Advocates General, with
Ms. Ranjna Patial, Deputy Advocate
General.

Virender Singh, Judge. (Oral)

Applicant-Brijendra Singh has filed the present application, under Section 482 of the Bharatiya Nagarik Suraksha Sanhita, 2023 (hereinafter referred to as 'BNSS'), with a prayer to direct the Police/Investigating Officer of Women Police Station Una, District Una, H.P., to release Whether Reporters of local papers may be allowed to see the judgment? Yes.

2 (2024:HHC:12428) him on bail, in the event of his arrest, in FIR No.36 of 2024, dated 21.10.2024, registered under Sections 67 and 351(2) of the Bharatiya Nayaya Sanhita, 2023 (hereinafter referred to as 'BNS').

2. The applicant is apprehending his arrest, in the above-noted case, with which, as per him, he has no concern whatsoever.

3. As per the applicant, he has solemnized marriage with the complainant on 7.12.2020 and after the marriage, they resided together for a period of six months. Thereafter, the complainant, suddenly left her matrimonial home and started residing separately. Thereafter, the applicant has moved a petition, by approaching the competent Court of law, under Section 9 of the Hindu Marriage Act, for restitution of Conjugal Rights, which was allowed on 2.7.2024 and the complainant was directed to join the company of her husband (applicant).

4. According to the applicant, in the interregnum, he and the complainant had filed a petition under Section 13(B) of the Hindu Marriage Act, for mutually dissolving their marriage, in which, the statements of first motion 3 (2024:HHC:12428) were recorded, by the competent Court of law. Thereafter, at the time of recording the statements of second motion, the complainant stated that she does not want to proceed further with the matter and refused to dissolve the marriage by mutual consent. Therefore, the said petition was dismissed as withdrawn.

5. As per the applicant, on the occasion of Karwa Chauth, the complainant has called the petitioner to Una, assuring him that now she wants to reside with him and give a fresh start to their marital life. Thereafter, the applicant visited the complainant at Una and they stayed in Sangara Guest House, Red Light Chowk, Una and checked out on the next day and on the next day, the complainant got lodged the above-noted FIR.

6. On the basis of the above facts, learned counsel for the applicant, has given certain undertakings, on behalf of the applicant, for which, he is ready to abide by, in case, any direction is issued to the Police/Investigating Officer, under Section 482 of the BNSS.

7. On all these submissions, a prayer has been made to allow the application.

4 (2024:HHC:12428)

8. When put to notice, the police has filed the status report, disclosing therein that on 21.10.2024, the complainant, had given a written complaint to the Police, disclosing therein, that she is resident of the address, as mentioned, in the complaint.

8.1. According to the complainant, her marriage was solemnized with the applicant, in the year 2020. After one month of the marriage, dispute has arisen and Court case is pending against the applicant in Court No.1, Una. 8.2. As per the complainant, the applicant called her at Sangara Guest House Una and make forcibly relation with her. She has also stated that the applicant has stolen her SAMSUNG A35 mobile with SIM No.8219773001. She has prayed that action be taken against the applicant. 8.3. On the basis of the above fact, the FIR in question, has been registered and the criminal machinery swung into motion.

8.4. It has been mentioned, in the status report, that the complainant was medico-legally examined, by the doctors at Regional Hospital, Una. During investigation, the statement of the complainant, under Section 180 of the 5 (2024:HHC:12428) BNSS, was got recorded. The statement of the complainant-victim was also recorded, under Section 183 of the BNSS, in the Court of learned Judicial Magistrate First Class, Court No.2, Una, on 22.10.2024. In the said statement, the complainant had reiterated the allegations as levelled in the complaint.

8.5. During investigation, the complainant has identified the place, where they had stayed. Photography of the spot were got done and relevant documents, of the Sangra Guest House, were taken into possession.

9. On the basis of the above facts, on 21.11.2024, while issuing notice, interim protection was given to the applicant.

10. In pursuance of the said interim protection, the applicant has joined the investigation on 23.11.2024. He has been arrested and released on bail, as per the directions of this Court. His medico-legal examination was also conducted.

11. In the supplementary status report filed today, i.e., on 25.11.2024, it has been mentioned, by the police, that the mobile phone of the complainant make Samsung 6 (2024:HHC:12428) is with the applicant, which, as per the applicant, was gifted to him, by the complainant.

12. On the basis of the above facts, a prayer has been made to dismiss the application.

13. Heard.

14. In the status report(s), filed by the police, it has not been mentioned that the applicant has not co-operated with the investigation or he has not joined the investigation.

15. The role allegedly played by the applicant, in the commission of the alleged crime, will be proved, by the prosecution, during the trial. The complainant and the applicant are married couple and history of litigation is also there.

16. The Police is not able to make out a case for custodial interrogation of the applicant, as such, there is no legal justification, for this Court, to reject the application, by withdrawing the interim protection, which was given to the applicant, vide order dated 21.11.2024.

17. At the time of deciding the bail application, detailed discussion of the evidence, so collected, by the 7 (2024:HHC:12428) prosecution or about the defence, which has been taken, by the applicant, should be avoided, as, it would cause prejudice to the case of the prosecution, as well as, that of the accused.

18. At the cost of repetition, it can be held that the applicant, in pursuance of the directions, issued by this Court, has joined the investigation and nothing is to be recovered from his possession or at

his instance. All these facts assume significance, as, in none of the status reports, filed by the Police, prayer for custodial interrogation has been made.

19. Considering all these facts, the interim order dated 21.11.2024, passed by this Court, is hereby made absolute, subject to the following conditions:

- a) That the applicant will join the investigation of the case, as and when, called for, by the Investigating Officer, in accordance with law;
- b) The applicant will not leave India, without prior permission of the Court;
- c) That the applicant will not, directly or indirectly, make any inducement, threat or promise to any person, acquainted with the facts of the case, so as to dissuade him/her from disclosing such facts to the Investigating Officer or the Court; and
- d) That the applicant shall regularly attend the trial Court on each and every date of hearing and if 8 (2024:HHC:12428) prevented by any reason to do so seek exemption from appearance by filing appropriate application.

20. Any of the observations, made hereinabove, shall not be taken as an expression of opinion, on the merits of the case, as these observations, are confined, only, to the disposal of the present application.

21. The applicant is directed to move regular bail application, when charge sheet will be filed in the Competent Court of Law.

22. It is made clear that the respondent-State is at liberty to move an appropriate application, in case, any of the bail conditions, is found violated by the applicant.

(Virender Singh) Judge November 25, 2024(ps)